Tenant company’s position

Authority to sign a winter lease

Reconstructed exercise document. Not an original case record.

Unofficial English reconstruction of a Swiss judgment in German

D01-P01

The tenant company denies that it owes the CHF 10,000 covered by the provisional debt-enforcement ruling. It maintains that its employee signed the winter lease without authority binding the company.

D01-P02

The managing director acknowledges an internal authorisation in an email but says she withdrew it in a subsequent telephone call. The company relies on that alleged withdrawal to dispute the employee’s authority.

D01-P03

The company also argues that the employee acted for her own benefit rather than for the company. The employee’s later dismissal and the director’s cancellation request are part of its account of the dispute.

Source: Bundesgericht 4A_421/2015, 2016-02-11